

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JENNIFER JEAN PHILLIPS,

Petitioner

VS.

DAVID ERIC PHILLIPS-KERLEY,

Respondent

) Case Number: FDI-23-798937

) Hearing Date: July 7, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER AUTHORIZATION FOR CALSTRS TO RELEASE ALL FUNDS AND
BENEFITS TO PETITIONER; REQUEST FOR ORDER PROPERTY CONTROL, FC1101(H)
GLOBAL ORDER / INTERIM \$200K SEE ATTACHED; REQUEST FOR ORDER RE: ATTORNEY
FEES AND COSTS, DISBURSEMENT OF SETTLEMENT FUNDS TO SATISFY OUTSTANDING
SANCTIONS ORDER

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Jennifer Jean Phillips (Wife) and Respondent David Eric Phillips-Kerley (Husband). The parties married on 1/3/1998. Wife contends the parties' date of separation is 3/31/2023, for a marriage of 25 years and 3 months. Husband contends the date of separation is "to be determined."
- 2) This matter is on for hearing on the following issues:
 - a. Wife's request for disbursement of \$10,000 from the blocked account containing settlement proceeds from Husband's lawsuit to cover a sanction award previously ordered by Judge Costin in her Findings and Order After Hearing filed 10/22/2025. See Temporary Emergency (Ex Parte) Order filed 5/21/2026.

- b. Wife's request for the release of \$200,000 from the blocked account containing settlement proceeds from Husband's lawsuit. See Temporary Emergency (Ex Parte) Order filed 6/26/2026.
- 3) The Court notes it already adjudicated Wife's Request for Order filed 5/5/2026 seeking authorization for CalSTRS to release all funds and benefits to Wife as well as Wife's request that the Court award her 100% of various assets. See Temporary Emergency (Ex Parte) Order filed 6/26/2026.
- 4) At the prior 6/26/2026 ex parte hearing, the Court ordered Husband to file and serve a response or objection to Wife's request to release funds from the blocked account no later than 6/30/2026. Husband did not file his opposition until 7/6/2026.
- 5) On 7/1/2026, attorney Alexis Gallindo filed a declaration stating he did not receive the Findings and Order After Hearing filed 6/5/2026 in the mail until 6/18/2026. Mr. Gallindo states the amount he was ordered to disburse to Rocket Mortgage from the settlement proceeds (\$45,577.72) is incorrect and the amount should be \$47,577.72. Mr. Gallindo states he confirmed with Rocket Mortgage attorney Andrew McKay that \$47,577.72 is the correct amount. Mr. Gallindo states he is prepared to issue payment to Rocket Mortgage immediately upon confirmation of the correct payment amount and receipt of the mailing address and loan number from Mr. McKay. Mr. Gallindo states that, once payment is issued, his firm will promptly establish the blocked interest-bearing client trust account as directed by the Court and deposit the remaining settlement proceeds therein. The Court will address this issue below.
- 6) The Court notes there are two future hearings scheduled in this matter:
- a. 7/31/2026 at 9:00 AM – Judicial Settlement Conference
 - b. 8/25/2026 at 9:00 AM – law and motion hearing on Wife's Orders to Show Cause Re: Contempt and Husband's Request for Order to discharge many of the contempt counts

B. Findings and Order

- 1) The Court has summarized in the Procedural History section above the issues to be heard at the 7/7/2026 hearing. In addition to these issues, Wife has filed an extensive number of declarations over the past few months that attempt to add additional issues to the 7/7/2026 hearing. This is not proper procedure. As provided in California Rule of Court 5.111 and Code of Civil Procedure

1 section 1005(b), if Wife would like the Court to adjudicate a request, she must file a Request for
2 Order, and one declaration (not to exceed 10 pages in length, not including exhibits) which
3 specifies her requests and provides argument for why the Court should grant those requests and
4 those pleadings must be filed and served at least 16 court days before the hearing. Wife must not
5 file declaration after declaration in an attempt to add more and more issues to a hearing date.
6 Wife has been previously admonished on this issue, and the Court expects Wife to comply with
7 this requirement effective immediately.

8 2) As Husband's opposition to Wife's requests for disbursement of funds from the blocked account
9 was filed following the Court-ordered deadline and because there is no Proof of Service on file
10 demonstrating service of that pleading on Wife, the Court will disregard Husband's opposition
11 filed 7/6/2026.

12 3) The Court finds that the correct amount to be paid to Rocket Mortgage from the settlement
13 proceeds is \$47,577.72. Once payment has been issued to Rocket Mortgage for this amount, Mr.
14 Gallindo shall provide proof of payment to both parties.

15 4) The Court makes the following orders regarding additional disbursements from the settlement
16 proceeds.

17 a. \$10,000 shall be immediately disbursed to Wife for sanctions previously awarded to Wife
18 by Judge Costin in the Findings and Order After Hearing filed 10/22/2025.

19 b. \$50,000 shall be immediately disbursed to each party (a total of \$100,000 disbursed) as
20 an early distribution of community property. Because there is a dispute regarding whether
21 some or all of the settlement proceeds are community property, the Court's jurisdiction to
22 later reallocate these distributions is reserved.

23 5) To summarize, Wife shall receive a disbursement of \$60,000 and Husband shall receive a
24 disbursement of \$50,000 from the settlement proceeds. As soon as Mr. Gallindo receives the
25 Findings and Order After Hearing memorializing this order in the mail, he shall issue checks to
26 each party for these amounts.

27 6) Once payment has been made to Rocket Mortgage, Wife, and Husband as set forth above, Mr.
28 Gallindo shall place the remainder of the settlement proceeds in a blocked interest-bearing client
29 trust account in both parties' names. The account shall remain blocked until further Court order.

1 7) The Court will prepare the Findings and Order After Hearing, which will be mailed to Wife,
2 Husband's attorney, and Mr. Gallindo.
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